

26STCV08114 26STCV08114

County: los-angeles
Division: Civil Law and Motion
Department: 506
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Case Number: 26STCV08114 Hearing Date: August 20, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

VICKIE Y. MABRY-HEIGHT,

Plaintiff,

vs.

RODNEY S. DIGGS, et al.,

Defendants.

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CASE NO.: 26STCV08114

[TENTATIVE] ORDER GRANTING MOTION FOR TRIAL
PREFERENCE; DENYING MOTION FOR STAY

Dept. 506

8:30 a.m.

August 20, 2026

On March 13, 2026, Plaintiff

Vickie Y. Mabry-Height filed this legal malpractice action against Defendants Rodney
S. Diggs, Tyrine Shawron Liala Aman, and Ivie McNeill Wyatt Purcell & Diggs
APLC.

On

July 2, 2026, Plaintiff filed a motion for trial preference.

On

July 17, 2026, Defendants filed a motion to stay the case pending writ proceedings
in a different jurisdiction.

MOTION
FOR TRIAL PREFERENCE

Defendants'
evidentiary objections are overruled.

The

Court does not consider Plaintiff's new evidence submitted with her Reply. (Jay v. Mahaffey, (2013) 218 Cal.App.4th 1522, 1537-1538.)

The

Court STRIKES Defendants' "Objection to New Evidence Submitted in Reply to Motion for Preference" as an unauthorized surreply.

The

Court STRIKES Plaintiff's "Reply to Defendants' Objection" (filed twice) as an unauthorized sur-surreply.

A

party who is over 70 years old may petition the court for a preference, which the court shall grant if the court makes both of the following findings: (1) the party has a substantial interest in the action as a whole; and (2) the health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation. (Code Civ. Proc., § 36, subd. (a).) An affidavit submitted in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party. (Code Civ. Proc., § 36.5.) "The issue under subdivision (a) is not whether an elderly litigant might die before trial or become so disabled that she might as well be absent when trial is called. Provided there is evidence that the party involved is over 70, all subdivision (a) requires is a showing that the party's "health . . . is such that a preference is necessary to prevent prejudicing [her] interest in the litigation. (Italics added.)" (Fox v. Superior Court (2018) 21 Cal.App.5th 529, 534 (Fox).) "Subdivision (a) requires the granting of calendar preference to 'prevent' prejudice to a stricken litigant's interests. (Italics added.) The idea that [plaintiff] should be made to wait to file a preference motion until she is clearly in her final days—when attendance at a trial is hardly what she should be doing—makes no sense at all." (Id. at p. 536.)

"Where

a party meets the requisite standard for calendar preference under subdivision (a), preference must be granted. No weighing of interests is involved." (Fox, supra, 21 Cal.App.5th at p. 535.) Any inconvenience

to the court or to other litigants is irrelevant and “[f]ailure to complete discovery or other pretrial matters does not affect the absolute

substantive right to trial preference for those litigants who qualify for preference.” (Swaithes v. Superior Court (1989) 212 Cal.App.3d 1082, 1085 (Swaithes).)

Plaintiff

is over 70 years old and suffers from difficult-to-control hypertension. (Marby-Height Decl. ¶¶ 2, 4-5.) Her age and condition “increases [her] risk of

an acute cardiovascular event such as a heart attack or stroke,” and “[t]he stress associated with the prolonged litigation of this matter has negatively affected

[her] blood pressure, [her] sleep, and [her] overall health.” (Marby-Height Decl. ¶¶ 10-11.) Plaintiff’s husband observed that her symptoms

have “worsen[ed] during periods of stress related to this matter, including headaches, heart palpitations, dizziness, fatigue, shortness of breath, exhaustion, anxiety, irritability, and disrupted sleep.” (Monroe

Decl. ¶ 3.) Plaintiff and her husband are

“concerned that continued delay in this litigation could further affect [her] health and impair [her] ability to participate meaningfully in discovery, trial preparation, and trial.” (Marby-Height Decl. ¶ 12; see

Monroe Decl. ¶ 6.) Plaintiff’s counsel confirms,

“[o]n information and belief, plaintiff is over 70 years of age; she suffers from difficult to-control hypertension and from hypertensive heart disease that elevate her risk of an acute cardiovascular event; and she requires ongoing cardiology care.” (Eaton Decl. ¶ 3.)

Defendants contend Plaintiff has not met her burden

of proving a medical condition that makes trial preference necessary. (Opposition at pp. 2-8.) Section 36, subdivision (a) requires a determination

that Plaintiff’s health is in such condition that a preference is necessary to prevent prejudicing the party’s interest in the litigation; it does not require some serious medical condition. Counsel’s declaration

based upon information and belief is sufficient to prove Plaintiff’s medical diagnosis and prognosis. (Code Civ. Proc., § 36.5.) Defendants’ expert declarations lack foundation with respect to Plaintiff’s condition and personal circumstances. These doctors have not evaluated or treated Plaintiff.

Defendants

also argue that they will be prejudiced by granting trial preference because they

will have inadequate time to prepare and defend this case. (Opposition at pp. 8-9.) However, Defendants’ inconvenience or inability

to complete discovery is irrelevant. (Swaithes, supra, 212 Cal.App.3d at p. 1085.)

CONCLUSION

Plaintiff's

motion for trial preference is GRANTED.

Because

trial preference is mandatory, Defendant's motion to stay is DENIED.

Final

Status Conference is scheduled for _____ at 9:00 a.m.

Jury

Trial is scheduled for _____ at 9:00 a.m. [No later than December 18, 2026]

The

parties are ordered to appear at the hearing (remote appearances permitted) to discuss their discovery plan and select dates.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 20th day of August 2026

Hon. Thomas D. Long

Judge of the Superior

Court